



U.S. Department
of Transportation

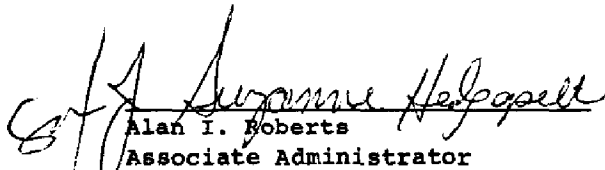
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10046 (EXTENSION)
FOURTH REVISION September 20, 1990

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 10046 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1994. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

NOV 06 1992

(DATE)

Dist: PHWA FRA USCG FAA

EXEMPTION HOLDER

APPLICATION DATE

Eveready Battery Company, Inc.
Westlake, OH

August 25, 1992



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10046
(FOURTH CORRECTED COPY)

SEP 20 1990

1. Eveready Battery Company, Inc., Cleveland, Ohio, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a certain type of lithium battery for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of a specified type of lithium battery excepted from the requirements of the Department's Hazardous Materials Regulations except as provided in this exemption.

2. BASIS. This exemption is based on an application from Eveready Battery Company, Inc. dated August 23, 1988 and supplemental information dated December 1, 1988, February 28 and April 18, 1989, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Batteries are composed essentially of lithium metal (anode) and iron pyrite (cathode). Each battery may not contain more than one gram of lithium and is further described in Exhibits A and B of the application for exemption; classed as flammable solid.

4. PROPER SHIPPING NAME (49 CFR 172.101). None required by DOT.

5. REGULATION AFFECTED. 49 CFR Parts 100-177 except as prescribed in this exemption.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel, cargo-aircraft only and passenger-carrying aircraft.

7. SAFETY CONTROL MEASURES. Packagings prescribed are blister packs placed in inside chipboard boxes overpacked in strong outside corrugated fiberboard boxes. Each battery in the blister pack must:

a. include a vent, a fuse and an electrical current limiting device, unless otherwise approved by DOT, and

b. be capable of passing all of the tests shown on Page 1 of Exhibit C of the application and the tests identified in applicant's letter dated February 28, 1989.

Gross weight of each package may not exceed 10 pounds and the aggregate quantity of lithium metal in each outside package may not exceed 200 grams. Each package must comply with the provisions of 49 CFR 173.24.

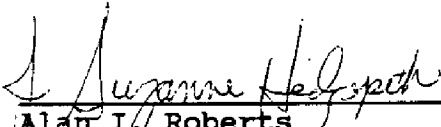
8. SPECIAL PROVISIONS.

- a. Packages must be marked "DOT-E 10046" as required 49 CFR Part 107, Appendix B to Subpart B Paragraph (1).
- b. A copy of this exemption must be carried on board each vessel and aircraft used to transport packages covered by this exemption.
- c. When used in electronic devices, batteries that conform with the provisions of paragraph 7.a. and 7.b. of this exemption are excepted from 49 CFR Parts 100-177.
- d. A total of no more than six batteries, packaged in blister packs of not more than two batteries each, may be carried by a passenger or crewmember on his/her person in carry-on baggage or checked baggage.
- e. Batteries that conform with the provisions of paragraph 7. of this exemption may be reshipped, by persons other than the exemption holder, not subject to the provisions of 49 CFR Parts 100-177 and paragraphs 8.a. and 8.b. of this exemption.
- f. This exemption constitutes approval by the Director, OHMT for shipment of these batteries pursuant to State Variation 25 of the ICAO Technical Instructions.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. November 30, 1990.

Issued at Washington, D.C.:



Alan I. Roberts
Director
Office of Hazardous Materials Transportation

SEP 20 1990

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: USCG, FAA, FHWA, FRA